

Inheritance Tax Manual

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Practice Note 4: agricultural tenancies

The Valuation Office Agency's (VOA) technical manual relating to Inheritance Tax.

General

The consideration of whether an agricultural tenancy exists is important due to the effect it has on the value of the freehold. It also may have a value in its own right (see Practice Note 5).

In preparing a valuation it is necessary to have an understanding of the legislation affecting agricultural holdings and in particular the rights and duties of both landlord and tenant. It is a complex subject and this Practice Note can only hope to give a brief outline. Further background reading of appropriate textbooks may be necessary - Scammell and Densham's Law of Agricultural

Holdings (Seventh Edition) is held in Regional libraries.

The Practice Note falls into five parts:

Part 1. A Summary of Relevant Legislation - (1)
Agricultural Holdings

Part 2 A Summary of Relevant Legislation - (2)
Agricultural Dwellings

Part 3. Essentials of a Tenancy

Part 4. Security of Tenure

Part 5. Rent Reviews



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